

1.

CASE #	CASE NAME	HEARING NAME
CVRI2504118	BILLEH VS HADDAD	MOTION FOR TERMINATING SANCTION, OR IN THE ALTERNATIVE, ISSUE SANCTIONS AND TO COMPEL FURTHER RESPONSES TO DISCOVERY SET ONE

Tentative Ruling: The Court DENIES the Motion.

Plaintiff's motion is unaccompanied by a notice of motion. Under Code of Civil Procedure section 1010, a notice of motion must be filed, which is a separate paper stating: (1) the time and place of hearing; (2) the nature of the order sought and the grounds for such an order, both of which must be stated in the first paragraph of the notice; and (3) the accompanying supporting papers listed by caption. (Code Civ. Proc., § 1010.)

The motion is procedurally deficient. (*Bohn v. Bohn* (1913) 164 Cal.532, 536-537 [motion for transfer "properly denied" for being "radically defective" in that it did not state any time when the motion would be made or brought on for hearing].)

Defendant argues Plaintiff created one motion for relief that would typically be sought by multiple separate filings. However, there is no authority that permits, nor prohibits, such a motion, particularly when they are in the same set.

Meet and Confer.

However, the Civil Discovery Act governs discovery procedures. (Code Civ. Proc., § 2016 et seq.) Plaintiff's motion alternatively seeks further responses to SROGs, RFAs, and RFPs, which are governed by Code of Civil Procedure sections 2033.290 (RFAs), 2031.310 (RFPs), and 2030.300 (SROGs). Before filing a motion to compel a further response, the moving party must engage in a reasonable and good faith attempt to resolve informally each issue set forth in the motion and must file an appropriate declaration with the motion. (Code Civ. Proc. §§ 2030.300, subd. (b), 2031.310, subd. (b)(2), and 2016.040.)

Effective January 1, 2026, the meet and confer **must be conducted in person, by telephone, or by videoconference**, and the meet and confer declaration must state facts showing a reasonable and good faith attempt to informally resolve **each issue** presented by the motion. (Code Civ. Proc., § 2016.040, subd. (a), emphasis added.) Plaintiff failed to meet and confer, claiming the Court's June 12, 2026, order expressly provides that Plaintiff may file a motion for further sanctions without additional meet and confer. (See Billeh Decl., ¶15) However, the Order does not state this. (See 6/12/2026 Order.)

Separate Statement.

California Rules of Court rule 3.1345(c) sets forth the requirements for the contents of a separate statement. Plaintiff's separate statement does not conform.

Based on the procedural defects, the Court DENIES the motion.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2504118	BILLEH VS HADDAD	MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT

Tentative Ruling: The Court GRANTS Plaintiff's unopposed Motion for Leave to File First Amended Complaint. Plaintiff shall file the First Amended Complaint within 14 days of this Order.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2600380	BARTELS VS COUNTY OF RIVERSIDE	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling: The Court DENIES Defendant's Requests for Judicial Notice. The Court OVERRULES the demurrer as to the 1st, 3rd, 4th and 5th causes of action. The Court SUSTAINS, without leave to amend, as to the 2nd and 6th causes of action.

"A demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. [Citation.] In order for the bar ... to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred." (Committee For Green Foothills v. Santa Clara County Bd. of Supervisors (2010) 48 Cal.4th 32, 42.) The burden is on the plaintiff to sufficiently plead facts that would support an equitable tolling, which the FAC fails to do. (Long v. Forty Niners Football Co., LLC (2019) 33 Cal.App.5th 550, 555.)

Here, the facts in this case began 30 years ago when Archer Road's elevation was changed, the FAC sets forth facts that could support a finding of equitable tolling based on ongoing promises by County until its counsel's letter of May 24, 2024, advised that County would no longer honor the prior promises and would not provide for public access. Accordingly, **the FAC is not barred on the grounds of statute of limitations.**

1st Cause of Action for Inverse Condemnation:

To state a claim for inverse condemnation, a plaintiff must allege that (1) a public entity, (2) has taken or damaged their property, (3) for a public use. (Simple Avo